

Transgender Persons (Protection of Rights) Act, 2019

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[Transgender Persons \(Protection of Rights\) Act, 2019](#)

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[No. 40 of 2019](#)

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[An Act to provide for protection of rights of transgender persons and their welfare and for matters connected therewith and incidental thereto.](#)

[Be it enacted by Parliament in the Seventieth Year of the Republic of India as follows: -](#)

[Chapter I](#)

[Preliminary](#)

1.

Short title, extent and commencement.

(1)

This Act may be called the Transgender Persons (Protection of Rights) Act, 2019.

(2)

It extends to the whole of India.

(3)

It shall come into force on such date as the Central Government may, by notification in the Official Gazette, appoint.

2.

Definitions.

- In this Act, unless the context otherwise requires, -

(a)

"appropriate Government" means, -

(i)

in relation to the Central Government or any establishment, wholly or substantially financed by that Government, the Central Government;

(ii)

in relation to a State Government or any establishment, wholly or substantially financed by that Government, or any local authority, the State Government;

(b)

"establishment" means -

(i)

any body or authority established by or under a Central Act or a State Act or an authority or a body owned or controlled or aided by the Government or a local authority, or a Government company as defined in section 2 of the Companies Act, 2013 (18 of 2013

), and includes a Department of the Government; or

(ii)

any company or body corporate or association or body of individuals, firm, cooperative or other society, association, trust, agency, institution;

(c)

"family" means a group of people related by blood or marriage or by adoption made in accordance with law;

(d)

"inclusive education" means a system of education wherein transgender students learn together with other students without fear of discrimination, neglect, harassment or intimidation and the system of teaching and learning is suitably adapted to meet the learning needs of such students;

(e)

"institution" means an institution, whether public or private, for the reception, care, protection, education, training or any other service of transgender persons;

(f)

"local authority" means the municipal corporation or Municipality or Panchayat or any other local body constituted under any law for the time being in force for providing municipal services or basic services, as the case may be, in respect of areas under its jurisdiction;

(g)

"National Council" means the National Council for Transgender Persons established under section 16;

(h)

"notification" means a notification published in the Official Gazette;

(i)

"person with intersex variations" means a person who at birth shows variation in his or her primary sexual characteristics, external genitalia, chromosomes or hormones from normative standard of male or female body;

(j)

"prescribed" means prescribed by rules made by the appropriate Government under this Act; and

(k)

"transgender person" means a person whose gender does not match with the gender assigned to that person at birth and includes trans-man or trans-woman (whether or not such person has undergone Sex Reassignment Surgery or hormone therapy or laser therapy or such other therapy), person with intersex variations, genderqueer and person having such socio-cultural identities as kinner, hijra, aravani and jogta.

Chapter II

Prohibition Against Discrimination

3.

Prohibition against discrimination.

- No person or establishment shall discriminate against a transgender person on any of the following grounds, namely: -

(a)

the denial, or discontinuation of, or unfair treatment in, educational establishments and services thereof;

(b)

the unfair treatment in, or in relation to, employment or occupation;

(c)

the denial of, or termination from, employment or occupation;

(d)

the denial or discontinuation of, or unfair treatment in, healthcare services;

(e)

the denial or discontinuation of, or unfair treatment with regard to, access to, or provision or enjoyment or use of any goods, accommodation, service, facility, benefit, privilege or opportunity dedicated to the use of the general public or customarily available to the public;

(f)

the denial or discontinuation of, or unfair treatment with regard to the right of movement;

(g)

the denial or discontinuation of, or unfair treatment with regard to the right to reside, purchase, rent, or otherwise occupy any property;

(h)

the denial or discontinuation of, or unfair treatment in, the opportunity to stand for or hold public or private office; and

(i)

the denial of access to, removal from, or unfair treatment in, Government or private establishment in whose care or custody a transgender person may be.

Chapter III

Recognition of Identity of Transgender Persons

4.

Recognition of identity of transgender person.

(1)

A transgender person shall have a right to be recognised as such, in accordance with the provisions of this Act.

(2)

A person recognised as transgender under sub-section (1) shall have a right to self-perceived gender identity.

5.

Application for certificate of identity.

- A transgender person may make an application to the District Magistrate for issuing a certificate of identity as a transgender person, in such form and manner, and accompanied with such documents, as may be prescribed: Provided that in the case of a minor child, such application shall be made by a parent or guardian of such child.

6.

Issue of certificate of identity.

(1)

The District Magistrate shall issue to the applicant under section 5, a certificate of identity as transgender person after following such procedure and in such form and manner, within such time, as may be prescribed indicating the gender of

such person as transgender.

(2)

The gender of transgender person shall be recorded in all official documents in accordance with certificate issued under sub-section (1).

(3)

A certificate issued to a person under sub-section (1) shall confer rights and be a proof of recognition of his identity as a transgender person.

7.

Change in gender.

(1)

After the issue of a certificate under sub-section (1) of section 6, if a transgender person undergoes surgery to change gender either as a male or female, such person may make an application, along with a certificate issued to that effect by the Medical Superintendent or Chief Medical Officer of the medical institution in which that person has undergone surgery, to the District Magistrate for revised certificate, in such form and manner as may be prescribed.

(2)

The District Magistrate shall, on receipt of an application along with the certificate issued by the Medical Superintendent or Chief Medical Officer, and on being satisfied with the correctness of such certificate, issue a certificate indicating change in gender in such form and manner and within such time, as may be prescribed.

(3)

The person who has been issued a certificate of identity under section 6 or a revised certificate under sub-section (2) shall be entitled to change the first name in the birth certificate and all other official documents relating to the identity of such person:

Provided that such change in gender and the issue of revised certificate under sub-section (2) shall not affect the rights and entitlements of such person under this Act.

Chapter IV

Welfare Measures by Government

8.

Obligation of appropriate Government.

(1)

The appropriate Government shall take steps to secure full and effective participation of transgender persons and their inclusion in society.

(2)

The appropriate Government shall take such welfare measures as may be prescribed to protect the rights and interests of transgender persons, and facilitate their access to welfare schemes framed by that Government.

(3)

The appropriate Government shall formulate welfare schemes and programmes which are transgender sensitive, non-stigmatising and non-discriminatory.

(4)

The appropriate Government shall take steps for the rescue, protection and rehabilitation of transgender persons to address the needs of such persons.

(5)

The appropriate Government shall take appropriate measures to promote and protect the right of transgender persons to participate in cultural and recreational activities.

Chapter V

Obligation of Establishments and Other Persons

9.

Nondiscrimination in employment.

- No establishment shall discriminate against any transgender person in any matter relating to employment including, but not limited to, recruitment, promotion and other related issues.

10.

Obligations of establishments.

- Every establishment shall ensure compliance with the provisions of this Act and provide such facilities to transgender persons as may be prescribed.

11.

Grievance redressal mechanism.

- Every establishment shall designate a person to be a complaint officer to deal with the complaints relating to violation of the provisions of this Act.

12.

Right of residence.

(1)

No child shall be separated from parents or immediate family on the ground of being a transgender, except on an order of a competent court, in the interest of such child.

(2)

Every transgender person shall have -

(a)

a right to reside in the household where parent or immediate family members reside;

(b)

a right not to be excluded from such household or any part thereof; and

(c)

a right to enjoy and use the facilities of such household in a non-discriminatory manner.

(3)

Where any parent or a member of his immediate family is unable to take care of a transgender, the competent court shall by an order direct such person to be placed in rehabilitation centre.

Chapter VI

Education, Social Security and Health of Transgender Persons

13.

Obligation of educational institutions to provide inclusive education to transgender persons.

- Every educational institution funded or recognised by the appropriate Government shall provide inclusive education and opportunities for sports, recreation and leisure activities to transgender persons without discrimination on an equal basis with others.

14.

Vocational training and self-employment.

- The appropriate Government shall formulate welfare schemes and programmes to facilitate and support livelihood for transgender persons including their vocational training and self-employment.

15.

Healthcare facilities.

- The appropriate Government shall take the following measures in relation to transgender persons, namely: -

(a)

to set up separate human immunodeficiency virus Sero-surveillance Centres to conduct sero-surveillance for such persons in accordance with the guidelines issued by the National AIDS Control Organisation in this behalf;

(b)

to provide for medical care facility including sex reassignment surgery and hormonal therapy;

(c)

before and after sex reassignment surgery and hormonal therapy counselling;

(d)

bring out a Health Manual related to sex reassignment surgery in accordance with the World Profession Association for Transgender Health guidelines;

(e)

review of medical curriculum and research for doctors to address their specific health issues;

(f)

to facilitate access to transgender persons in hospitals and other healthcare institutions and centres;

(g)

provision for coverage of medical expenses by a comprehensive insurance scheme for Sex Reassignment Surgery, hormonal therapy, laser therapy or any other health issues of transgender persons.

Chapter VII

National Council For Transgender Persons

16.

National Council for Transgender Persons.

(1)

The Central Government shall by notification constitute a National Council for Transgender Persons to exercise the powers conferred on, and to perform the functions assigned to it, under this Act.

(2)

The National Council shall consist of -

(a)

the Union Minister in-charge of the Ministry of Social Justice and Empowerment, Chairperson, ex officio;

(b)

the Minister of State, in-charge of the Ministry of Social Justice and Empowerment in the Government, Vice-Chairperson, ex officio;

(c)

Secretary to the Government of India in-charge of the Ministry of Social Justice and Empowerment, Member, ex officio;

(d)

one representative each from the Ministries of Health and Family Welfare, Home Affairs, Housing and Urban Affairs, Minority Affairs, Human Resources Development, Rural Development, Labour and Employment and Departments of Legal Affairs, Pensions and Pensioners Welfare and National Institute for Transforming India Aayog, not below the rank of Joint Secretaries to the Government of India, Members, ex officio;

(e)

one representative each from the National Human Rights Commission and National Commission for Women, not below the rank of Joint Secretaries to the Government of India, Members, ex officio;

(f)

representatives of the State Governments and Union territories by rotation, one each from the North, South, East, West and North-East regions, to be nominated by the Central Government, Members, ex officio;

(g)

five representatives of transgender community, by rotation, from the State Governments and Union territories, one each from the North, South, East, West and North-East regions, to be nominated by the Central Government, Members;

(h)

five experts, to represent non-governmental organisations or associations, working for the welfare of transgender persons, to be nominated by the Central Government, Members; and

(i)

Joint Secretary to the Government of India in the Ministry of Social Justice and Empowerment dealing with the welfare of the transgender persons, Member Secretary, ex officio.

(3)

A Member of National Council, other than ex officio member, shall hold office for a term of three years from the date of his nomination.

17.

Functions of Council.

- The National Council shall perform the following functions, namely: -

(a)

to advise the Central Government on the formulation of policies, programmes, legislation and projects with respect to transgender persons;

(b)

to monitor and evaluate the impact of policies and programmes designed for achieving equality and full participation of transgender persons;

(c)

to review and coordinate the activities of all the departments of Government and other Governmental and non-Governmental Organisations which are dealing with matters relating to transgender persons;

(d)

to redress the grievances of transgender persons; and

(e)

to perform such other functions as may be prescribed by the Central Government.

Chapter VIII

Offences and Penalties

18.

Offences and penalties.

- Whoever, -

(a)

compels or entices a transgender person to indulge in the act of forced or bonded labour other than any compulsory service for public purposes imposed by Government;

(b)

denies a transgender person the right of passage to a public place or obstructs such person from using or having access to a public place to which other members have access to or a right to use;

(c)

forces or causes a transgender person to leave household, village or other place of residence; and

(d)

harms or injures or endangers the life, safety, health or well-being, whether mental or physical, of a transgender person or tends to do acts including causing physical abuse, sexual abuse, verbal and emotional abuse and economic abuse, shall be punishable with imprisonment for a term which shall not be less than six months but which may extend to two years and with fine.

Chapter IX

Miscellaneous

19.

Grants by Central Government.

- The Central Government shall, from time to time, after due appropriation made by Parliament by law in this behalf, credit such sums to the National Council as may be necessary for carrying out the purposes of this Act.

20.

Act not in derogation of any other law.

- The provisions of this Act shall be in addition to, and not in derogation of, any other law for the time being in force.

21.

Protection of action taken in good faith.

- No suit, prosecution or other legal proceeding shall lie against the appropriate Government or any local authority or any officer of the Government in respect of anything which is in good faith done or intended to be done in pursuance of the provisions of this Act and any rules made thereunder.

22.

Power of appropriate Government to make rules.

(1)

The appropriate Government may, subject to the condition of previous publication, by notification, make rules for carrying out the provisions of this Act.

(2)

In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely: -

(a)

the form and manner in which an application shall be made under section 5;

(b)

the procedure, form and manner and the period within which a certificate of identity is issued under sub-section (1) of section 6;

- (c) the form and manner in which an application shall be made under sub-section (1) of section 7;
- (d) the form, period and manner for issuing revised certificate under sub-section (2) of section 7;
- (e) welfare measures to be provided under sub-section (2) of section 8;
- (f) facilities to be provided under section 10;
- (g) other functions of the National Council under clause (e) of section 17; and
- (h) any other matter which is required to be or may be prescribed.

(3)
Every rule made by the Central Government under sub-section (1), shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

(4)
Every rule made by the State Government under sub-section (1), shall be laid, as soon as may be after it is made, before each House of the State Legislature where it consists of two Houses, or where such legislature consists of one House, before that House.

23.

Power to remove difficulties.

(1)
If any difficulty arises in giving effect to the provisions of this Act, the Central Government may, by order published in the Official Gazette, make such provisions, not inconsistent with the provisions of this Act as appear to it to be necessary or expedient for removing the difficulty:

Provided that no such order shall be made after the expiry of the period of two years from the date of commencement of this Act.

(2)
Every order made under this section shall, as soon as may be after it is made, be laid before each House of Parliament.

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